# MUTUAL NON-DISCLOSURE AGREEMENT

Document No.: MTI-LEGAL-NDA-2026-0117 • Rev 2.0 • Micron Confidential

| Party | Details |
|---|---|
| **Disclosing Party** | Micron Technology, Inc.<br>8000 S. Federal Way, Boise, ID 83716 |
| **Receiving Party** | Acme Semiconductor Partners, LLC<br>2500 Great America Pkwy, Suite 400, Santa Clara, CA 95054 |
| **Effective Date** | 2026-10-12 |
| **Term** | Three (3) years from Effective Date |

## 1. Purpose

The parties wish to explore a potential business relationship relating to the supply of DRAM memory components, specifically next-generation DDR6 and LPDDR6 products under Micron Technology's Project AURORA program. In connection with this evaluation, each party may disclose to the other certain Confidential Information as defined herein.

## 2. Definition of Confidential Information

"Confidential Information" means any information disclosed by one party ("Disclosing Party") to the other party ("Receiving Party") that is designated as confidential or that reasonably should be understood to be confidential given the nature of the information and circumstances of disclosure. This includes, without limitation: (a) product specifications, roadmaps, and process node details; (b) pricing, cost models, and financial projections; (c) customer lists, supplier agreements, and NDA-covered partnerships; (d) trade secrets relating to semiconductor fabrication processes; and (e) any information marked PROPRIETARY or CONFIDENTIAL by Micron Technology, Inc.

## 3. Obligations of Receiving Party

The Receiving Party agrees to: (a) hold the Confidential Information in strict confidence using at least the same degree of care used to protect its own confidential information, but no less than reasonable care; (b) not disclose Confidential Information to any third party without prior written consent; (c) use Confidential Information solely for the Purpose set forth in Section 1; and (d) promptly notify Micron Technology, Inc. upon discovery of any unauthorized use or disclosure.

## 4. Exclusions

Confidential Information does not include information that: (a) is or becomes publicly known through no breach of this Agreement; (b) was rightfully known by Receiving Party before receipt from Disclosing Party; (c) is independently developed by Receiving Party without use of

Confidential Information; or (d) is required to be disclosed by law or court order, provided Receiving Party gives Disclosing Party prompt written notice.

## 5. Trade Secret Protection

The parties acknowledge that certain Confidential Information may constitute trade secrets of Micron Technology, Inc. under applicable state and federal law, including the Defend Trade Secrets Act (DTSA), 18 U.S.C. § 1836. The Receiving Party agrees to provide trade secrets with the highest level of protection required by law and this Agreement. Misappropriation of trade secrets may result in civil and criminal liability.

## 6. Return of Materials

Upon written request by the Disclosing Party, the Receiving Party shall promptly return or destroy all Confidential Information (including copies, notes, and extracts) and certify in writing that it has done so. Obligations of confidentiality survive return or destruction for a period of five (5) years.

## 7. Governing Law

This Agreement shall be governed by the laws of the State of Idaho, without regard to its conflict of law provisions. Any dispute arising under this Agreement shall be subject to the exclusive jurisdiction of the state and federal courts located in Ada County, Idaho.

---

| MICRON TECHNOLOGY, INC. | ACME SEMICONDUCTOR PARTNERS, LLC |
|---|---|
| Signature: _____ | Signature: _____ |
| Name: R. Harrington | Name: S. Tanaka |
| Title: VP, Corporate Development | Title: Chief Business Officer |
| Date: _____ | Date: _____ |